

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
DANIEL DAVIS,

Plaintiff,

-against-

Plaintiff designates

BRONX County as the place of trial

The basis of the venue is where the
tort arose and where plaintiff resides

CITY OF NEW YORK, individually and officially in their
capacities as New York City Police Officers, SHAMEKA
VANDERPOOL, DENNIS VICKERY, LARRY
JIMENEZ, and JOHN or JANE DOE 1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 7, 2019



SIM & DEPAOLA, LLP
BY: PETER SIM, ESQ.
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 201
Bayside, New York 11361
(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. SHAMEKA VANDERPOOL OF THE 42 PCT.
SHIELD#1193 TAX ID NO. 957242**

830 Washington Ave,
Bronx, NY 10451

**P.O. DENNIS VICKERY OF THE HIGHWAY PATROL UNIT 1.
SHIELD#1141 TAX ID NO. 926258**

2 Bronx River Parkway,
Bronx, NY 10462

P.O. LARRY JIMENEZ OF THE 42 PCT.

830 Washington Ave,
Bronx, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DANIEL DAVIS,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, individually and officially in their Index No.:
capacities as New York City Police Officers, SHAMEKA
VANDERPOOL, DENNIS VICKERY, LARRY
JIMENEZ, and JOHN or JANE DOE 1-10,

Defendants.
-----X

Plaintiff, DANIEL DAVIS, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from an August 3, 2016 incident, in which defendants, acting under color of state law, unlawfully arrested and detained Daniel Davis. Daniel Davis was subsequently charged with Operating a Motor Vehicle While Under the Influence of Alcohol or Drug. As a result, Mr. Davis was deprived of his liberty and suffered physical and psychological injuries. Mr. Davis was wrongfully incarcerated over the course of approximately twenty-four (24) hours. He was maliciously prosecuted until the dismissal of all charges on May 3, 2018 by the Hon. Stroth, L. of the Bronx County Supreme Court.
2. As a result of the civil rights violations, Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff Daniel Davis ("Mr. Davis") resides at 100 Van Courtland Park, South Apt. D21, Bronx, NY 10463.
4. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officers Shameka Vanderpool ("Vanderpool"), was at all times here relevant, a police officer employed by the NYPD and as such, was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Vanderpool was, at all times relevant herein, a Police Officer under Shield No. 1193, Tax Reg. No. 957242 in the 42nd precinct, located at 830 Washington Ave, Bronx, NY 10451. Defendant Vanderpool is being sued in her individual and official capacities.
8. Defendant Police Officer Dennis Vickery ("Vickery"), was at all times here relevant, a police officer employed by the NYPD and as such, was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Dennis was, at all

times relevant herein, a Police Officer under Shield No. 1141, Tax Reg. No. 926258 in the Highway Patrol Unit 1, located at 2 Bronx River Parkway, Bronx, NY 10462. Defendant Vickery is being sued in his individual and official capacities.

9. Defendant Police Officer Larry Jimenez (“Jimenez”) was at all times here relevant, a police officer employed by the NYPD and as such, was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Jimenez was, at all times relevant herein, a Police Officer in the 42nd precinct, located at 830 Washington Ave, The Bronx, NY 10451. Defendants Jimenez is being sued in his individual and official capacities.
10. At all times relevant Defendants John and Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD that participated in the unlawful arrest and malicious prosecution of Plaintiff. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John and Jane Doe 1-10, but such knowledge is believed to in possession of the Defendants.
11. At all times relevant herein, Defendants John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1-10 are sued in their individual and official capacities.
12. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
13. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.

14. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
15. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
16. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

17. On August 3, 2016 at approximately 1:00 A.M., Mr. Davis was in the vicinity of 163rd Street and Washington Avenue, County of Bronx, State of New York.
18. On said date, time and location, Mr. Davis was driving his cousin's vehicle obeying all traffic laws.
19. Immediately prior to the incident, Mr. Davis was on his way home from a coworker's house.
20. On said date and time, Mr. Davis was pulled over by an NYPD police vehicle without any legal reason or justification.
21. Defendants, including Vanderpool, Vickery and Jimenez, approached Plaintiff's vehicle from both the driver's side and the passenger's side.
22. Plaintiff had not committed any crimes or violations of the law.
23. Then Defendants, including Vanderpool, Vickery and Jimenez, asked Plaintiff for his driving license and vehicle registration.
24. Plaintiff immediately complied with the Defendants' order.
25. Then Defendants, including Vanderpool, Vickery and Jimenez, asked Plaintiff whether he had any guns or drugs in the vehicle. Plaintiff replied no.

26. Defendants, including Vanderpool, Vickery and Jimenez, took their flashlights out and shined the flashlight into the vehicle conducting an illegal search without any probable cause.
27. Then Defendants, including Vanderpool, Vickery and Jimenez, grabbed Plaintiff's left arm and vehemently pulled him out of his vehicle without any legal reason to do so.
28. Then Defendants, including Vanderpool, Vickery and Jimenez, entered Plaintiff's vehicle and illegally searched the entire vehicle, including the trunk, without any probable cause or reasonable suspicion to do so. However, Defendants didn't find anything illegal.
29. Defendants, including Vanderpool, Vickery and Jimenez, then illegally searched Plaintiff's person without any legal reason to do so. However, nothing illegal was recovered.
30. Then Defendants, including Vanderpool, Vickery and Jimenez, illegally placed handcuffs on Plaintiff without any probable cause or reasonable suspicion to do so.
31. Defendants, including Vanderpool, Vickery and Jimenez, falsely arrested Plaintiff claiming that he was operating a motor vehicle while in an intoxicated condition.
32. Defendants, including Vanderpool, Vickery and Jimenez, were fully aware that Plaintiff was not driving his vehicle while in an intoxicated condition, but knowingly and intentionally chose to state otherwise to justify and excuse an otherwise invalid arrest.
33. Plaintiff was never driving under the influence of alcohol or drug.

34. Plaintiff had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight.
35. Plaintiff was put into the police vehicle and taken to the 42nd precinct.
36. Upon arrival the precinct, Plaintiff was brought into a bathroom, where an illegal strip searched with cavity inspection was conducted by defendants, including Vanderpool, Vickery and Jimenez.
37. As a result of Defendants', including Vanderpool, Vickery and Jimenez, knowingly and intentionally false statements and allegations, Plaintiff was falsely arrested under arrest number B16643613.
38. Plaintiff did not commit any crimes or violations of the law.
39. Defendants, including Vanderpool, Vickery and Jimenez, intentionally provided false information and statements to the Bronx District Attorney's Office, so that a criminal prosecution would be initiated against Plaintiff, namely that Plaintiff was operating a vehicle while under the influence of alcohol.
40. Defendant Vanderpool was Plaintiff's arresting officer and signed his criminal court complaint (2016BX033434), knowingly and falsely that the accusations contained in said criminal court complaint was false and untrue. Defendant Vanderpool falsely accused Plaintiff of Operating a Motor Vehicle Under Influence of Alcohol or Drug, all of which Vanderpool knew to be untrue.
41. Plaintiff was arraigned and formally charged with two (2) counts of Operating a Motor Vehicle Under Influence of Alcohol or Drug.
42. At no point did Defendants, including Vanderpool, Vickery and Jimenez, ever observe Plaintiff committed any crime or offense.

43. At no point were the Defendants, including Vanderpool, Vickery and Jimenez, ever told by any witness that Plaintiff committed any crime or violation of the law.
44. Plaintiff was released from custody on or about August 3, 2016, at approximately 11:00 pm.
45. Defendants, including Vanderpool, Vickery and Jimenez, had no probable cause or reasonable suspicion to arrest, detain or stop Plaintiff.
46. Defendants, including Vanderpool, Vickery and Jimenez, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime.
47. While Plaintiff was unlawfully detained, Defendants, including Vanderpool, Vickery and Jimenez, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Operating a Motor Vehicle Under Influence of Alcohol or Drug.
48. Defendants, including Vanderpool, Vickery and Jimenez, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely stopping and searching a vehicle without a search warrant, arresting individuals without probable cause due to no guns or drugs being found.
49. Defendants, including Vanderpool, Vickery and Jimenez, suppressed evidence and engaged in conduct undertaken in bad faith.
50. Defendants have displayed a pattern and practice of falsely alleging individuals driving while in an intoxicated condition to justify otherwise unwarranted vehicle search and individual arrests.

51. Plaintiff was wrongfully incarcerated for approximately twenty-four (24) hours, until he was released on or about August 3, 2016.
52. Plaintiff was forced to return to court more than ten times to appear on the false charges levied against him, until the charge was favorably terminated and dismissed on May 3, 2018.
53. During all of the events described, the Defendants, including Vanderpool, Vickery and Jimenez, acted maliciously and with intent to injure Plaintiff.
54. At all times relevant hereto, Defendants, including Vanderpool, Vickery and Jimenez, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
55. At all times relevant hereto, Defendants, including Vanderpool, Vickery and Jimenez, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
56. As a direct and proximate result of the acts of Defendants, including Vanderpool, Vickery and Jimenez, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under

New York State Law

57. The above paragraphs are here incorporated by reference as though fully set forth.
58. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
59. Plaintiff was conscious of his confinement.
60. Plaintiff did not consent to his confinement.
61. Plaintiff's arrest and false imprisonment was not otherwise privileged.
62. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
63. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
64. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

65. The above paragraphs are here incorporated by reference as though fully set forth.
66. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
67. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

68. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

70. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

71. The above paragraphs are here incorporated by reference as though fully set forth.

72. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

73. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

76. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

77. The above paragraphs are here incorporated by reference as though fully set forth.

78. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
79. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
80. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
81. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

82. The above paragraphs are here incorporated by reference as though fully set forth.
83. Defendants initiated the prosecution against Plaintiff.
84. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
85. Defendants acted with malice.
86. The prosecution was terminated in Plaintiff's favor when the criminal charges were dismissed and sealed.
87. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
88. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
89. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

90. The above paragraphs are here incorporated by reference as though fully set forth.
91. Defendants initiated the prosecution against Plaintiff.
92. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
93. Defendants acted with malice.
94. The prosecution was terminated in Plaintiff's favor when all charges were dismissed and sealed.
95. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
96. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
97. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

98. The above paragraphs are here incorporated by reference as though fully set forth.
99. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
100. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
101. Defendants intended to inflict substantial harm upon Plaintiff.

102. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
103. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
104. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
105. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

106. The above paragraphs are here incorporated by reference as though fully set forth.
107. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
108. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
109. Defendants intended to inflict substantial harm upon Plaintiff.
110. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
111. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
112. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

113. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

114. The above paragraphs are here incorporated by reference as though fully set forth.
115. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
118. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

119. The above paragraphs are here incorporated by reference as though fully set forth.
120. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

121. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

122. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

123. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

124. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

125. The above paragraphs are here incorporated by reference as though fully set forth.

126. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

127. Defendant City breached that duty of care.

128. Defendant City placed defendants in a position where they could inflict foreseeable harm.

129. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

130. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

132. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

133. The above paragraphs are here incorporated by reference as though fully set forth.

134. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

135. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

136. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.

137. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

138. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

139. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

140. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action.

Dated: Bayside, New York
June 7, 2019

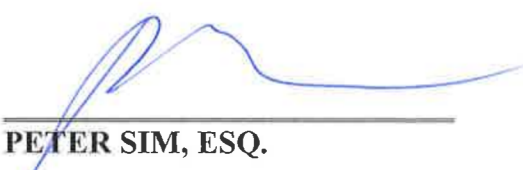


SIM & DEPAOLA, LLP
By: PETER SIM
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ATTORNEY VERIFICATION

I, **Peter Sim**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 7, 2019



PETER SIM, ESQ.

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DANIEL DAVIS,

Plaintiff,

-against-

CITY OF NEW YORK, individually and officially in their capacities as New York City Police
Officers, SHAMEKA VANDERPOOL, DENNIS VICKERY, LARRY JIMENEZ, and JOHN or
JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for